

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, AUGUST 4, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, August 4, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, August 3, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at **8:30 a.m. in Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0087402 Capital One NA v. London, Juliann

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Motion to Enforce Settlement

Plaintiff moves to set aside dismissal and enter judgment on stipulation pursuant to Code of Civil Procedure section 664.6 in the amount of \$810 in principal damages plus costs of \$603.61 for a total judgment of \$1,413.61. Defendant has not filed any opposition.

This motion was initially scheduled for hearing on July 23, 2026 at 8:30 a.m. in Department 3. However, given changes to the court's calendar, the court rescheduled this matter to be heard on August 4, 2026. There is no evidence in the court's file that defendant was served with notice of continued hearing. The court on its own motion continues this motion to be heard on **August 25, 2026 at 8:30 a.m. in Department 32**. Plaintiff is directed to serve defendant with a copy of this ruling and to file a proof of service with the court by August 7, 2026.

2. **S-CV-0045659 Larsen, Sherry v. Placer Valley Sports Complex**

This tentative ruling is issued by the **Honorable Suzanne I. Gazzaniga**. If oral argument is requested, it will be heard on **August 4, 2026 at 1:30 p.m. in Department 43**.

Motion for Attorneys' Fees

Defendant and cross-complainant Placer Valley Sports Complex, Inc., dba @the Grounds ("defendant") moves for an award of attorneys' fees against plaintiff and cross-defendant Sherry Larsen individually and dba California State Enterprises ("plaintiff") in the amount of \$396,445 and costs of \$60 for the filing fee for this motion. Plaintiff opposes the motion.

Preliminarily, plaintiff's opposition was untimely filed without leave of court. The court exercises its discretion to consider all briefing filed in this matter.

The threshold question is whether defendant is entitled to recover fees. The action is based on a 2019 Facility License Agreement, which includes an attorneys' fees provision: "Item 14 – Miscellaneous: The prevailing party in any action to enforce or interpret this agreement shall be entitled to recover its reasonable attorneys' fees." (Cross-complaint, Exh. 1, Item 14.) A prevailing party in an action on contract is entitled to recover reasonable attorneys' fees where the contract provides for their recovery. (Civ. Code, § 1717, subd. (a).) Here, after a multi-day court trial, the court found in favor of defendant as against plaintiff on both the complaint and the cross-complaint. (Judgment, filed Feb. 2, 2026.) The judgment also specified, "Placer Valley Sports Complex, Inc. is the prevailing party in the action" and that "Placer Valley Sports Complex, Inc. is entitled to recover from Sherry Larsen the attorney fees it incurred in the action in an amount determined by the court on post-judgment motion and order." (*Ibid.*) As this court has already found, defendant is the prevailing party and is therefore entitled to recover reasonable attorneys' fees.

The court must next address whether \$396,445 in attorneys' fees is reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler, supra*, 22 Cal.4th at p. 1095.)

The court has carefully reviewed the declaration of counsel Robert F. Sinclair. Counsel Sinclair declares his hourly rate of \$400, counsel Scott Christensen's hourly rate of \$300, and paralegal Vicki L. Canales' hourly rate of \$150, which the court finds to be reasonable. Moreover, the court observes that plaintiff, in her untimely opposition, concedes the hourly rates are reasonable. Turning next to the question of whether the number of hours incurred are reasonable, the court has carefully reviewed the declaration of counsel Sinclair and Exhibit A thereto, which supports 1,002.1 hours of attorney time

and 1.9 hours of paralegal time incurred in this litigation. The court observes defense counsel's invoices reveal instances where the work does not appear necessary for the litigation or is insufficiently explained and instances where the work appears to be duplicative or unreasonably excessive. In light of these observations, a decrease to the total number of hours is appropriate and the court reduces counsel Sinclair's hours by 47.70 hours and counsel Christensen's hours by 3.60 hours.

Plaintiff's untimely opposition objects to witness fees for David Jones and fees for Craig Connerty. However, defendant is not seeking these costs by way of this motion; rather, defendant claimed these costs by way of a costs memorandum filed on February 13, 2026 and served by mail on February 12, 2026. Costs in a costs memorandum may be challenged by a motion to strike or to tax costs filed within "15 days after service of the cost memorandum." (Cal. Rules of Court, rule 3.1700(b)(1).) "After the time has passed for a motion to strike or tax costs or for determination of that motion, the clerk must immediately enter the costs on the judgment." (Cal. Rules of Court, rule 3.1700(b)(4).) Here, no motion to strike or to tax costs has been filed and the time to do so has long passed. The costs of \$43,049.74 declared in defendant's costs memorandum, including those two categories that plaintiff objects to, have long become final and cannot be challenged by way of opposition to the instant attorneys' fees motion.

As to additional costs, defendant seeks \$60 for the filing fee for this motion. This is an allowable cost pursuant to Code of Civil Procedure section 1033.5(a)(1) and the court finds the amount is reasonable. The court awards additional costs of \$60.

Based on the foregoing, the motion for attorneys' fees is granted in part. Defendant is awarded attorneys' fees against plaintiff in the amount of \$376,285 and additional costs of \$60 for a total of \$376,345.

3. S-CV-0046752 Vicara Homeowners Assoc. v. Dedricksen, Susan

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

Moving counsel is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion To Be Relieved as Counsel

The motion to be relieved as counsel for plaintiff Vicara Homeowners Association by Brady & Vinding is granted, effective upon the filing of proof of service of the signed order after hearing on the client, Vicara Homeowners Association. (Code Civ. Proc., § 284, subd. (2); Cal. Rules of Court, rule 3.1362.)

4. **S-CV-0051202 Khachadourian, Gilbert Jr. v. Cook, Richard Noah**

Defendants Richard Noah Cook and Mary Melody Cook's Motion for Protective Order and Order Requiring Return of Privileged Documents

The Cook defendants move for a protective order preventing the deposition of third party Bob Eynck, on the grounds that any potential testimony of Mr. Eynck falls within the attorney-client privilege and work product protections. The Cook defendants further seek protective orders related to certain documents produced by Jeppson Law, LLP and California Watershed Engineering, Corporation ("CWE"), which the Cook defendants contend are privileged attorney-client communications.

As a preliminary matter, just weeks ago the court denied a motion by the Cook defendants to quash the deposition subpoena issued to Mr. Eynck and granted plaintiffs' motion to compel the deposition. (See Ruling on Submitted Matter, filed July 15, 2026.) The court considered the Cook defendants' assertions of privilege but found the privileges had been waived. (Id.) The court found no privilege applied to Bob Eynck's reports and other documents related to the flooding and drainage issues surrounding the property at issue in 2017 and ordered Mr. Eynck to appear and provide deposition testimony within seven days. (Id.) The current motion in large part seeks reconsideration of the court's recent ruling, without compliance with Code of Civil Procedure section 1008, and to that extent is denied.

Significantly, the court previously expressly considered and rejected arguments made by the Cook defendants, noting:

... defendants meet their initial burden that the email correspondence between their former counsel of record [Eric Jeppson], Bob Eynck, and defendant Richard Cook are subject to the attorney-client and attorney work product privilege. Plaintiffs thereafter meet their burden to establish defendants waived their privileges when defendant Richard Cook did not object to the privileged materials being introduced and discussed at his deposition. (Evid. Code, § 912.) Nor is a protective order proper given the privileges have been waived.

(July 15, 2026 ruling at pg. 2.)

While the court's prior ruling identified particular exhibits discussed at the deposition of Richard Cook, the ruling was based on the specific finding of a waiver of privileges as to Bob Eynck's reports and other documents related to flooding and drainage at the property in 2017. Given this finding, the present motion lacks merit.

Defendants' motion is denied in its entirety. The parties' respective requests for sanctions are denied.

Plaintiffs' Motion to Compel as to Defendant Verdera Community Association

Plaintiffs move to compel defendant Verdera Community Association: 1) to produce, without redactions, the Design Review Committee meeting minutes Bates-stamped Verdera 001368 through Verdera 001697, together with any other responsive Design Review Committee agendas and minutes that Verdera has withheld or redacted in whole or in part; and 2) to designate and produce a person most qualified to testify regarding the 2016 revision of Verdera's Design Review Guidelines-including the circumstances of, the persons involved in, and the reason for the revisions-at further deposition to be completed within 5 days. (Pls. Corrected Notice & Mot. Compel at 2.) Plaintiffs bring this motion pursuant to Code of Civil Procedure sections 2031.310, 2031.320, 2025.230 and 2025.450. (Pls. Corrected Notice & Mot. Compel at 2.)

The Design Review Committee minutes for the years 2013 to 2022 and accompanying privilege log were provided to plaintiffs on June 12, 2026, with redactions. (See Decl. of BG at ¶ 13.) On June 17, 2026, defendant served the DRC minutes for the years 2023 to 2026 with accompanying updated privilege log and similar redactions to those for 2013 to 2022. (See Decl. of BG at ¶ 18.) Plaintiffs' motion is timely brought under both Code of Civil Procedure section 2031.310(c) and 2031.320.

Plaintiffs' motion to compel production of unredacted Design Review Committee minutes is granted. The parties are ordered to meet and confer in good faith regarding an appropriate protective order to address any third party privacy concerns related to production of the unredacted minutes. Defendant shall produce the subject documents within five days of service of notice of entry of the court's order.

Plaintiffs' motion to compel Verdera to designate and produce a person most qualified is also granted. Defendant shall designate and produce a person most qualified to testify regarding the subjects identified in plaintiffs' motion within five days of service of notice of entry of the court's order.

Plaintiffs' request for monetary sanctions is granted. (Code Civ. Proc. § 2025.450(g)(1).) Plaintiffs are awarded sanctions in the amount of \$1,260 from defendant Verdera Community Association and its counsel of record, jointly and severally.

Plaintiffs' ex parte application for: (1) an order compelling immediate production of defendants' experts' files; (2) an order requiring depositions of defendants' designated expert witnesses to proceed on dates purportedly agreed to by defendants; and (3) an order permitting plaintiffs' experts to be deposed after the expert-discovery cutoff

Plaintiffs request emergency relief from the court related to expert witness discovery. First, plaintiffs request the court order defendants to immediately produce its expert witnesses' files pursuant to Code of Civil Procedure section 2034.415. This request is denied as section 2034.415 requires production of the files three business days prior to the expert witness's deposition and plaintiffs fail to demonstrate any violation of the

statute as it does not appear that any such depositions proceeded prior to the filing of the application.

Second, plaintiffs request the court order that the depositions of defendants' experts proceed on dates which were previously offered by defendants. This request is denied as it is unsupported by statutory authority. Plaintiffs' request to permit plaintiffs' expert depositions to proceed after the expert discovery cutoff date is likewise denied. The court notes that scheduling issues such as those raised by the application can and should be resolved through good faith meet and confer and compromise between counsel. Counsel are reminded of their obligations in that regard.

5. S-CV-0051782 American Express NB v. Rode, Leon

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Motion to Enforce Settlement

Plaintiff moves to set aside dismissal and enter judgment on stipulation pursuant to Code of Civil Procedure section 664.6 in the amount of \$30,039.81 in principal damages plus costs of \$655 for a total judgment of \$30,694.81. Defendants have not filed any opposition.

The unopposed motion is granted. (Code Civ. Proc., § 664.6.) The dismissal entered May 21, 2024 is hereby set aside and judgment is entered for plaintiff as against defendants in the amount of \$30,694.81 (\$30,039.81 in principal damages and costs of \$655).

6. S-CV-0052333 Ivancich, Larry v. Safeway Inc.

Defendant's Motion to Compel Further Response to Special Interrogatory No. 62

Defendant moves to compel further response to special interrogatory no. 62. Plaintiff opposes the motion.

The court notes defendant failed to comply with Code of Civil Procedure 3.1345 (a)(2) by failing to provide a separate statement in support of its motion to compel further response to special interrogatory no. 62.

The court admonishes defendant on its failure to strictly adhere to Code of Civil Procedure 3.1345 (a)(2). However, as defendant reproduced the entirety of special interrogatory no. 62 and plaintiff's response in its moving papers, the court will review the merits.

By filing the subject lawsuit which seeks recovery for personal injuries and general damages, plaintiff put his medical condition at issue in the case. The request for medical treatment sought by special interrogatory no. 62 is limited to the timeframe of March 1,

2025, through the present. Defendant is entitled to discovery into any information that may prove or disprove an element of a claim or defense.

Defendant's motion to compel further response to special interrogatory no. 62 is granted. Defendant shall serve a further response within 10 days of service of notice of entry of the court's order.

Plaintiff's request for sanctions for responding to this motion is denied.

7. S-CV-0055053 Jacobson, Annika v. Warren T Eich Middle School

Defendant Roseville City School District's Demurrer to First Amended Complaint and Motion for Sanctions is **continued to August 11, 2026, at 8:30 a.m. in Department 32.**

8. S-CV-0055442 Davis, Andrew v. Temco Logistics

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Compel

Defendant Home Express Delivery Service, LLC dba Temco Logistics' unopposed motion to compel responses to form interrogatories, set one, is granted. (Code Civ. Proc., § 2030.290.) Plaintiff shall serve defendant written responses, without objections, to form interrogatories, set one, within 15 days of service of notice of entry of order.

Defendant's request for monetary sanctions is denied. However, plaintiff is admonished that repeated failures to comply with discovery obligations may lead the court to find an abuse of the discovery process and award sanctions on that basis. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 459, 478, fn. 4.)

Motion to Compel

Defendant Home Express Delivery Service, LLC dba Temco Logistics' unopposed motion to compel responses to requests for production of documents, set one, is granted. (Code Civ. Proc., § 2031.300.) Plaintiff shall serve defendant written responses and responsive documents, without objections, to requests for production of documents, set one, within 15 days of service of notice of entry of order.

Defendant's request for monetary sanctions is denied. However, plaintiff is admonished that repeated failures to comply with discovery obligations may lead the court to find an abuse of the discovery process and award sanctions on that basis. (*Laguna Auto Body v.*

Farmers Ins. Exchange (1991) 231 Cal.App.3d 481, overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 459, 478, fn. 4.)

Motion to Compel

Defendant Home Express Delivery Service, LLC dba Temco Logistics' unopposed motion to compel responses to special interrogatories, set one, is granted. (Code Civ. Proc., § 2030.290.) Plaintiff shall serve defendant written responses, without objections, to special interrogatories, set one, within 15 days of service of notice of entry of order.

Defendant's request for monetary sanctions is denied. However, plaintiff is admonished that repeated failures to comply with discovery obligations may lead the court to find an abuse of the discovery process and award sanctions on that basis. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 459, 478, fn. 4.)

Motion to Compel

Defendant Home Express Delivery Service, LLC dba Temco Logistics' unopposed motion to compel further responses to requests for admission, set one, is granted. (Code Civ. Proc., § 2033.290.) Plaintiff shall serve defendant further responses to requests for admission, set one, numbers 1–2, 4–6, 8, 11–13, 19–21, and 30 within 15 days of service of notice of entry of order.

Defendant's request for monetary sanctions is denied. However, plaintiff is admonished that repeated failures to comply with discovery obligations may lead the court to find an abuse of the discovery process and award sanctions on that basis. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 459, 478, fn. 4.)

9. S-CV-0056073 Berg, Jill Elaine v. Berg, Brendon

Motion to Compel Responses to Form Interrogatories, Set One

Plaintiff Advanced Test Equipment Corporation's unopposed motion to compel responses to form interrogatories, set one, is granted. Plaintiff's request for monetary sanctions against defendants Brendon Berg and the EMC Shop, LLC, is granted in the amount of \$860.

Motion to Compel Responses to Special Interrogatories, Set One

Plaintiff Advanced Test Equipment Corporation's unopposed motion to compel responses to special interrogatories, set one, is granted. Plaintiff's request for monetary sanctions against defendants Brendon Berg and the EMC Shop, LLC, is granted in the amount of \$860.

Motion to Compel Responses to Request for Production of Documents, Set One

Plaintiff Advanced Test Equipment Corporation's unopposed motion to compel responses to demand for production of documents, set one, is granted. Plaintiff's request for monetary sanctions against defendants Brendon Berg and the EMC Shop, LLC, is granted in the amount of \$860.

Motion to Deem Request for Admissions, Set One, as Admitted

Plaintiff Advanced Test Equipment Corporation's unopposed motion to deem request for admissions, set one, as admitted, is granted. Plaintiff's request for monetary sanctions against defendants Brendon Berg and the EMC Shop, LLC, is granted in the amount of \$860.

10. S-CV-0056216 Schlein, Brian v. Pacheco-Zepeda, Luis Alberto

Motion to Consolidate

Brian Schlein moves to consolidate S-CV-0053572 (previously consolidated with S-CV-0054679) with S-CV-0056216.

The court may order consolidation of actions involving a common question of law or fact. (Code Civ. Proc., § 1048, subd. (a).) Here, both matters involve the same motor vehicle collision on May 25, 2024 and overlapping (but not identical) parties. There are common questions of law and fact between these two actions. However, the parties have filed a notice of settlement of entire case in S-CV-0053572 indicating a request for dismissal would be filed following a petition for approval of compromise of claim of a minor. As it appears one of these actions has in substance resolved and the other has not, the distinct procedural postures of these actions do not lend themselves towards consolidation. The motion to consolidate is denied.

11. S-CV-0056872 Dowling, Teresa Evelyn v. Dept. of Motor Vehicles

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

First Amended Petition for Writ of Administrative Mandate

Petitioner seeks issuance of a writ of administrative mandate directing respondent to rescind its suspension of petitioner's driver's license or to require respondent to make reasonable accommodations for further testing. Respondent has answered the first amended petition.

Petitioner has not submitted an administrative record to the court as required by Code of Civil Procedure section 1094.5. While each party has submitted initial briefs, petitioner's brief filed July 16, 2026 is supported by deficient notice (providing respondent only 13

court days' notice) and makes no citations to the administrative record. Respondent's brief raises the issue of deficient notice and confirms that not only has no administrative record been submitted to the court, petitioner has not requested a certified copy of the administrative record from respondent.

The court schedules this writ petition for a status conference on **September 15, 2026 at 8:30 a.m. in Department 32**. Petitioner shall forthwith obtain a copy of the administrative record and lodge it with the court by September 3, 2026. In advance of the continued hearing, the parties are directed to meet and confer in good faith regarding a further briefing schedule and a hearing date for the first amended petition. By September 3, 2026, the parties shall file a joint declaration describing the meet and confer efforts and providing a proposed briefing schedule and a proposed hearing date. Tentative ruling procedures pursuant to Local Rule 20.2.3 will apply to the September 15, 2026 status conference.

12. S-CV-0057073 Foulk, Steven R v. LoanDepot.com

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Default Judgment

Plaintiff's request for default judgment in the amount of \$130,153.31 as against defendant LoanDepot.com LLC is denied without prejudice. Under the one judgment rule, plaintiff's request is premature. Generally, there shall be only one judgment in each action, commonly referred to as the "one judgment rule." (*Bank of America Natl. Trust & Savings Assn. v. Super. Court* (1942) 20 Cal.2d 697, *Morehart v. County of Santa Barbara* (1994) 7 Cal.4th 725, 740–41.) While default has been entered against defendant LoanDepot.com LLC, another defendant in this action, Selene Finance LP, is actively litigating this matter. The court will not enter judgment as to one defendant while litigation remains pending as to another defendant.

Based on the foregoing, the motion for default judgment is denied without prejudice.

13. S-CV-0057192 Zatkulak, Jeanie v. Curtice, James

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

Demurrer to the Complaint

Defendant James Curtice demurs to the complaint as to plaintiff Jeanie Zatkulak only, contending the complaint fails to allege facts sufficient to state a claim pursuant to Code of Civil Procedure section 430.10(e). Plaintiff Jeanie Zatkulak opposes the demurrer.

Preliminary Issues

Defendant's request for judicial notice is granted as to exhibits D and E. Defendant's request for judicial notice is also granted as to exhibits A, B, and C as to the fact that they are filed documents; the court does not, however, take judicial notice of the information alleged and declared therein.

Plaintiff's opposition was untimely filed and served without explanation. Plaintiff's counsel is admonished to adhere to the notice periods outlined in Code of Civil Procedure section 1005(b). The court will, however, exercise its discretion to consider all briefing submitted in this matter.

Ruling on the Motion

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendant contends that plaintiff Jeanie Zatkulak lacks standing to bring a wrongful death claim in her individual capacity. The complaint identifies plaintiff Jeanie Zatkulak as "surviving parent" to the minor plaintiffs. (Complaint, ¶¶ 1, 3a, 3b, 12.) The complaint alleges, "[a]s a result of Ryan Michael Zatkulak's death, . . . the surviving parent of the decedent's minor children, has now been burdened with having to provide 100% of the care comfort and financial support of the children for whom Decedent once shared, and for whom Decedent was legally obligated to support during the children['s] minority." (Complaint, p. 4.)

Code of Civil Procedure section 377.60 lists persons who have standing to bring a wrongful death claim to include “surviving spouse, domestic partner, children, and issue of deceased children, or, if there is no surviving issue of the decedent, the persons, including the surviving spouse or domestic partner, who would be entitled to the property of the decedent by intestate succession[,]” and also “if they were dependent on the decedent, the putative spouse, children of the putative spouse, stepchildren, parents, or the legal guardians of the decedent if the parents are deceased.” (Code Civ. Proc., § 377.60, subds. (a), (b).) Courts have rejected efforts to extend wrongful death standing beyond the categories expressly provided for by statute. (See, e.g., *Villacampa v. Russell* (1986) 178 Cal.App.3d 906 [holding an ex-wife did not have wrongful death standing for her ex-husband for recovery of spousal support and one-half of a monthly pension because she did not fit within any of the categories provided for in Code of Civil Procedure section 377 (former Section 377.60)]; *Nieto v. City of Los Angeles* (1982) 138 Cal.App.3d 464 [holding the surviving fiancée of the deceased did not have wrongful death standing and Code of Civil Procedure section 377 (former Section 377.60) was not unconstitutional].)

Here, the complaint alleges that plaintiff Jeanie Zatkulak is the “surviving parent of the decedent’s minor children” and nowhere alleges that plaintiff Jeanie Zatkulak falls into one of the categories outlined in Code of Civil Procedure section 377.60. For this reason, the complaint falls short of alleging plaintiff Jeanie Zatkulak has standing for the purpose of bringing a wrongful death claim individually for the death of the deceased parent of her minor children. Plaintiff’s arguments that *Nieto v. City of Los Angeles* (1982) 138 Cal.App.3d 464 requires a different outcome is misplaced and appears to ignore the holding in that case.

Based on the foregoing, the demurrer is sustained. Plaintiff bears the burden of demonstrating how the complaint may be amended to cure the defects therein. (*Jensen v. The Home Depot, Inc.* (2018) 24 Cal.App.5th 92, 97.) Plaintiff falls short of her burden of showing the defects are curable. Accordingly, leave to amend is denied.

After this court’s ruling, minor plaintiffs Samantha Zatkulak and Mark Zatkulak remain plaintiffs in this action. While the complaint alleges their appearance “by and through Jeanie Zatkulak surviving parent,” a review of the court’s file reveals no petition for appointment of Guardian Ad Litem has been submitted or granted for either minor as required by Code of Procedure section 372. The court on its own motion schedules this matter for an order to show cause hearing where plaintiffs should be prepared to show reasons why, if any, the complaint should not be dismissed for failure to obtain court appointment as Guardian Ad Litem for minor plaintiffs on **September 1, 2026 at 9:00 a.m. in Department 32.**

Motion to Strike the Complaint

Defendant James Curtice moves to strike portions of the complaint referring to Jeanie Zatkulak individually as plaintiff. Based on the above ruling sustaining without leave the

demurrer to the complaint as to plaintiff Jeanie Zatkulak, the motion to strike is denied as moot.

14. S-CV-0057953 In Re the Petition of Burke, Tyler John

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

Petition for Dissolution of a Corporation and Appointment of Receiver

Petitioners Tyler John Burke and Donald N. Rios petition for judicial dissolution of respondent RBM Construction. Respondents have not yet appeared.

It does not appear the petition is yet at issue. While the verified petition was filed on May 20, 2026, Corporations Code section 1800 authorizes the filing of a “verified complaint” for involuntary dissolution and does not mention the filing of a petition. No summons has been sought or issued. There is no evidence in the court’s file that either respondent has been served the petition. No briefing has been submitted to the court. The court also observes that while the verified petition references two exhibits, no exhibits are attached to the petition.

Based on the foregoing, the petition hearing is dropped from the court’s calendar subject to being re-noticed by petitioner once the petition is at issue. Petitioner shall call and reserve a hearing date on the civil law and motion calendar pursuant to Local Rule 20.2.
